

Council Meeting
July 27, 2022
Page 1

The Claremont City Council held a meeting on Wednesday, July 27, 2022, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward II Councilor James Contois - absent
Ward I Councilor Andrew O'Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau
At-Large Councilor Nicholas Koloski
At-Large Councilor William Limoges
At-Large Councilor Lucas Beliveau
At-Large Councilor Matthew Mooshian
Mayor Dale Girard

Also present:

John P. Bohenko, Interim City Manager
Lisa Richmond, Finance Director – Via Zoom

AGENDA CHANGES

Mayor Girard removed agenda item 10F to a future date.

REPORT OF THE SECRETARY

A motion was made by Councilor Koloski and seconded by Assistant Mayor Matteau to accept the minutes of the July 13th, 2022, City Council meeting.

Councilor O'Hearne asked for a change to the roll call vote on page seven.

Mayor Girard asked to add that the CDBG information was available in City Hall and on-line was stated during the last meeting before the grant discussion.

Voice Vote:

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 8-0

MAYOR'S NOTES

Mayor Girard asked for a moment of silence for the former DPW employee Henry Frechette who had passed away this week.

Mayor Girard gave an update relative to HB12-21; this would provide reimbursements to the city for Police, and Fire retirements, as well as the school district. Mayor Girard also mentioned SB401 was signed by the governor on Monday this week for funding of Highways and Bridges.

Proclamation – Retirement of Chief Chase (Council)

Mayor Girard read a proclamation to Chief Chase for his retirement, Chief Chase thanked the Council and his family and especially thanked his wife and daughters and his employees. Chief Chase noted he couldn't have done his job without all the great employees.

Councilor Koloski presented Chief Chase with a gift; a Hawaiian shirt with Claremont Police Cruisers on it.

Proclamation – Retirement of Chief Chase (Sherman Packard)

Representative Walter Stapleton, read a proclamation on behalf of House Representative Sherman Packard for Chief Chase's retirement.

CITY MANAGER'S REPORT

Mr. Bohenko updated the Council by stating that Lisa Richmond, Finance Director, is now appointed as the Assistant City Manager, and thanked Chief Chase for his assistance.

Mr. Bohenko followed up with concerns about plantings on Pleasant Street and noted these plants are under a one-year warranty, and will be coming up with a plan to take care of the plants after the warranty has ended.

Mr. Bohenko noted Candance Crawford is resigning from the Personnel Advisory Board and is in the process of finding a replacement.

Mr. Bohenko also noted five-hundred feet of Sugar River Drive will be paved next week.

Councilor O'Hearne had a concern with garage maintenance, Mr. Bohenko stated Public Works staff has gone through the garage to clean up, and fencing has been placed to reduce debris.

CITIZEN'S FORUM

Mayor Girard reminded all that during Citizen's Forum each person may speak up to five minutes on non-agenda items.

Robert Davis, Ward 1, stated having Sugar River Drive paved next week will be a big plus. Mr. Davis noted there are still more issues to be addressed such as Puckershire Drive. Mr. Davis mentioned Calcium chloride has only been placed on one occasion, and suggested going over it 2-3 times because of the dust.

Mike Tetu, Ward 1, mentioned the Friends of Claremont Transfer Station Facebook page is up and running, and has grown past 100 members. Mr. Tetu stated volunteers have stepped up to educate users on free recycling opportunities. Mr. Tetu stated users of the Transfer Station expect to have a free recycling opportunity and asked the Council not to give up on that.

Norm Blouin, Ward 3, thanked the Council for moving forward on the Transfer Station, and thanked Chief Chase for his service. Mr. Blouin shared concerns for Pleasant Street specifically parking at the bank, and suggested it should have been left as parallel parking. Mr. Blouin also shared concern that the Highway Department doesn't work outside of City limits.

Christian Gomes, with Ford of Claremont wants to build a new dealership by the Ford Garage and noted on July 13th a meeting was held with the DES. Mr. Gomes stated Councilor Contois came to oppose the efforts. Mr. Gomes noted that Councilor Contois made it known he was a Councilor of Claremont but did not represent the Council as a whole. Mr. Gomes is requesting the Council to write a letter stating Councilor Contois was there on his own merits as a citizen, not representing the Council.

Councilor O'Hearne suggested this should be an agenda item at the next meeting.

Mayor Girard asked Council to add discussion of this topic during to the end of this agenda under "Future Agenda Items and Directives".

Walt Stapleton, Ward 3, here as the Treasurer of the Station Association. Mr. Stapleton noted on June 29th the Vermont Rail Council held their quarterly meeting, and stated Former Mayor Charlene Lovett made a beautiful presentation about gardens and shelter that has been restored at Claremont Station. The Vermont Rail Council were impressed, and Mr. Stapleton feels it's an important marketing effort. Mr. Stapleton mentioned plans to extend the trains into Montreal but these plans were interrupted because of COVID, but hopes it will be a future destination.

NEW BUSINESS

Resolution 2023-8 ARPA Cybersecurity Implementation Grant- Public Hearing

RESOLUTION 2023-8

Submission of a Funding Application to the NHDES Cybersecurity Implementation Grant and American Rescue Plan Act of 2021 (ARPA)

BE IT RESOLVED by the Claremont City Council, after a public hearing, duly noticed, that

WHEREAS, the City of Claremont, New Hampshire wishes to apply for funds from the New Hampshire Department of Environmental Services Cybersecurity Implementation Grant and American Rescue Plan Act of 2021 (ARPA) grant funds to complete projects relating to the installation/ upgrade of hardware/software, configuration changes, implementation of an improved cybersecurity process, strategy, or approach to the City's drinking water and wastewater systems; and

WHEREAS, the City would like to accept and expend the funds for their intended purpose;

NOW, THEREFORE, BE IT RESOLVED by the City Council to authorize the City Manager, or his designees, to take such actions as may be necessary to apply for the New Hampshire Department of Environmental Services Cybersecurity Implementation Grant and the American Rescue Plan Act of 2021 (ARPA) and enter into a grant agreement.

BE IT FURTHER RESOLVED to accept and expend the sum of \$86,366 from the New Hampshire Department of Environmental Services Cybersecurity Implementation Grant and the American Rescue Plan Act of 2021 (ARPA).

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. *(2/3 Vote Required)*

A motion was made by Councilor Limoges and seconded by Councilor O'Hearne to adopt Resolution 2023-8.

Councilor Limoges read Resolution 2023-8 into the record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Beliveau - yes

Mooshian - yes
Girard – yes
Motion carried 8-0

Review of FY21 Audit

Tammy Webb, audit manager and Ms. Richmond shared a presentation for the audit on this past year's financial statements ending June 30th 2021.

Ms. Webb stated the City received an “unmodified” or “clean opinion” for all reporting units

After the overview of the FY2021 audit, Ms. Webb thanked City and gave a special thanks to finance department.

Resolution 2023-9 ARPA Funds for Fire Department

RESOLUTION 2023-9

ARPA Funds for Fire Fighters

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that:

WHEREAS the City of Claremont, New Hampshire has been awarded State and Local Recovery Funds from the American Rescue Plan in the amount of **\$250,000.00** \$300,000.00 for the purpose of supporting our response to and the recovery from the COVID-19 public health emergency;

WHEREAS the City would like to accept and expend the funds for their intended purpose;

NOW THEREFORE BE IT RESOLVED that the City Council hereby authorizes the City Manager or his designees to undertake all actions and execute all documents as may be required to accept a grant in the amount of **\$250,000.00** \$300,000.00 from the State and Local Recovery Funds from the American Rescue Plan; and

BE IT FURTHER RESOLVED to raise and appropriate the sum of **\$250,000.00** \$300,000.00 for the Fire Department (from off-setting grant revenue) for the purpose of payroll costs associated with supporting our response to the COVID-19 public health emergency for the Claremont Fire Department; and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution.
(2/3 Vote Required)

Mr. Bohenko recommended to Council the amount be changed from \$300,000.00 to \$250,000.00. Ms. Richmond stated being comfortable with moving this money to the fire department, for use of fire funds.

Councilor Stone asked if this was an acceptable practice. Ms. Richmond stated ARPA funds can be used for police, fire, and welfare. Councilor Limoges and Assistant Mayor Matteau also shared concern for this practice.

Mayor Girard stated the U.S. Treasury Website states ARPA funds can be used for Payroll. Mayor Girard read aloud references that can be found on page 11.

A motion was made by Councilor Mooshian and seconded by Councilor Stone to adopt 2023-9.

Councilor Mooshian read resolution 2023-9

Roll call:

O’Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 8-0

Transfer Funds from Fire Department to Municipal Complex

Motion to Transfer Funds Between Departments

The Claremont City Council, pursuant to Article III, Section 45 of the Claremont City Charter, hereby authorizes the City Manager or his designees to transfer the following sums of money between departments, such funds having been raised and appropriated in the 2023 City budget.

Transfer **from:** 01-422-101-0000 Fire Regular Pay **\$250,000.00** \$300,000

Transfer **to:** 01-415-510-0000 Municipal Complex Building M&R **\$250,000.00**
\$300,000

A motion was made by Councilor Koloski and seconded by Councilor Stone to transfer Funds of \$250,00.00 from Fire Regular Pay to Municipal Complex Building M&R.

Roll call:

O’Hearne - yes

Stone - yes

Matteau - no

Koloski - no

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 6-2

Energy Procurement – Presented by Andy LaFreniere

Our current energy contract expires this fall – November. Finance began discussions with our local energy broker this past spring for various strategies to control the city’s energy cost in a volatile market. Due to market volatility, an alternative approach is recommended. The city is pursuing a “block & index” approach; this approach has a fixed rate component for capacity “fixed adder” and dollar cost average for the power (commodity) portion.

Capacity – is the component cost determined via auction three years in advance, and this rate is already set through 2025. The city’s capacity is determined in June via a formula that uses our maximum demand on the hottest day from the previous years and is called “captag.” For calendar 2022, the number used would be from 2021, when COVID had people working from home, so our peak demand should be lower.

Power (commodity) – is the component that is currently volatile. As a result, the city is looking to do a blend or dollar cost average of the rate. This approach will help spread the rate risk.

Due to market volatility and the fact rates change hourly. The city is asking the council to approve the motion for the City Manager to enter into a contract when a favorable rate offer is made available.

Motion to Negotiate Energy Contract for Power

The Claremont City Council hereby authorizes the City Manager to negotiate and enter into a multi-year agreement to purchase power with Mantis Innovation (Energy Procurement Specialist), formally known as Patriot Energy Group.

Mr. LaFrenier presented the energy procurement options, and noted the market is more volatile than it was just a few weeks ago. Mr. LaFrenier recommended rather than using fixed rates, purchase through Mantis Innovation in stages. Mr. LaFrenier noted he has updated his previous report with pricing but believes the issue comes down to strategy vs. price which will vary day to day, and week to week. Mr. LaFrenier noted how important it is to give staff authority for immediacy; and November is fast approaching.

Councilor Koloski asked how time sensitive this is, and can this be put off until the next meeting.

Mr. Bohenko did not recommend waiting, as the pricing has already gone up since the first discussion in June, and the risk for price escalation is higher.

Assistant Mayor Matteau expressed the need to be ready to make a decision at any given moment and noted it was important to give authority to the City Manager.

A motion was made by Councilor Koloski and seconded by Assistant Mayor Matteu to authorize the City Manager to enter into a multi-year agreement with Mantis Innovation.

Roll call:

O'Hearne - no

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 7-1

COMMITTEE REPORTS

Assistant Mayor Matteau noted the Planning Board met Monday to discuss upcoming changes during the next meeting in two weeks relative to ADU's, and parking requirements in the downtown zoning districts.

Mayor Girard reported on the Airport Advisory committee; the airport opened last Tuesday July 19th.

Councilor Stone reported the Policy Committee continues to work on food truck and vendor permits.

FUTURE AGENDA ITEMS AND DIRECTIVES

Mayor Girard discussed Mr. Gomes request and asked for consensus of the Council if this should be added onto the August 10th Agenda. Consensus was 6-2, and will be added to the August 10th City Council Agenda.

Councilor O'Hearne expressed concern for Glidden Street, suggesting it be a one-way road.

CONSULTATION WITH LEGAL COUNSEL

none

ADJOURNMENT

At 8:10 p.m., a motion was made by Assistant mayor Matteau and seconded by Councilor Limoges to adjourn.

Voice vote:

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 8-0

Respectfully Submitted,

Julia A. Bizzarro
Clerk to the Council